

Court No. - 21

Case :- WRIT - C No. - 17078 of 2023

Petitioner :- Keshav Prasad

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Daksha Yadav

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. Sri N.K. Tiwari, learned counsel for the respondent-Electricity Department, prays for and is granted time to obtain instructions.
2. List as fresh on 30.5.2023.
3. In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery proceedings.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 19.5.2023

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Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. Counsel for the respondent Electricity Department prays for and is granted further time to complete his instructions.
2. List as fresh on 11.07.2023.
3. Interim order is extended till the next date of listing.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 30.5.2023

SL

Chief Justice's Court

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Counsel for Petitioner :- Daksha Yadav

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Pritinker Diwaker,Chief Justice

Hon'ble Ashutosh Srivastava,J.

Undisputedly, the petitioner has an alternative remedy of filing appeal under Section 127 of U.P. Electricity Supply Code, 2005. Without availing such remedy, this petition has been filed.

Considering the fact that interim order was passed by this Court on 19.05.2023, the petition is disposed of permitting the petitioner to file appeal under Section 127 of U.P. Electricity Supply Code, 2005 along with an application for interim relief within two weeks from today.

In the eventuality of filing any such application by the petitioner for interim relief, the same may be decided by the authority concerned strictly in accordance with law.

The interim order passed in favour of the petitioner shall remain in operation for two weeks from today.

Order Date :- 11.7.2023

SK

(Ashutosh Srivastava,J.) (Pritinker Diwaker,CJ.)